

EXHIBIT B

Scope of Services

The Services are defined as the following:

Gardiner proposes the following energy conservation measures (ECM's) for Brecksville Broadview Heights Schools.

BRECKSVILLE BROADVIEW HEIGHTS MIDDLE SCHOOL

ECM 01-01: REPLACE MECHANICAL SYSTEMS - DUAL DUCT, MZ, GUIDANCE & LIBRARY

Existing Conditions:

The existing dual duct unit is original equipment to the building from an addition in 1964 and serves classrooms and guidance offices. The unit has a 40 ton DX cooling coil with one stage completely non- operational. The dual duct system feeds both hot air and cooled air to each room where the thermostat in the room determines whether the damper opens to the hot side or the cold side of the box. This is done by the original pneumatic system. The return air back to the air handling unit is completed through transfer grilles in the rooms to the hall and all air gets back to the unit by utilizing the hallway. This is no longer allowed by code. The unit is pneumatically controlled which is not optimal for energy efficient operation and comfort control. The dual duct unit serves the guidance office area which operates all year so the unit must operate even when that is the only area occupied.

The science area multi-zone unit is part of the original 1960 building. The unit is mounted above the drop ceiling in the corridor. Return air is transferred from the rooms into the hall where it enters the fan through grate in the drop ceiling. This is no longer allowed by code. This unit has been modified with an unusual connection to accept a 20 ton AC system which was not original to the installation. Unit is pneumatically controlled and dampers were not functioning properly to get proper ventilation to the zone.

The library is now fed heating and AC from an original H&V unit in the ceiling outside the library area which has a DX coil in the supply ductwork. The AC unit is estimated to be 40 years old and the fan unit is original to the building.

Proposed Solutions:

Since both units serve basically all the same area, it was evaluated to replace both with one main central system but it was determined that one system would need to be too large to get the benefit of utilizing the existing dual duct supply lines in the ceiling. The ductwork appears to be sized for medium pressure, so to utilize the maximum amount of ductwork that exists above the ceiling, the science area will be split into two equally sized systems each serving half of the area minus the guidance office area which will have its own separate system. The existing cold duct will be use to provide supply air to new VAV boxes with reheat coils in each room and the hot deck will be used to provide return air back to the units. ***If the area is currently serviced with heating and air conditioning by the existing Library, Science room or Dual Duct HVAC systems these areas will be serviced by the replacement HVAC systems installed by Gardiner as a part of this project.***

The first half of the science area will have a 25 ton cooling only RTU in the location of the existing dual duct unit and utilizing the existing cold deck ductwork to serve 12 of the existing classrooms from the dual dust

system. FPVAV (Fan powered VAV) boxes with hot water coils will be installed for each classroom. The total estimated area to be served by this system is 9,200 sq. ft. The following room lists are estimated until the load calculations are completed. The Final determination of which classrooms end up on either of the two systems will be based on the maximum utilization of the existing ductwork.

Rooms to be served from the old dual duct unit are designated as 221, 222, 223, 224, 225, 226, 227, 228, 229, 235, 236 and 237.

The second half of the area will utilize a 25 ton cooling only RTU to be installed in the location of the existing multi-zone unit and utilizing the existing cold deck ductwork to serve 10 existing zones consisting of 7 classrooms and a storage room, of which two classrooms have two boxes served from the dual duct system and 5 classrooms from the multi-zone unit. FPVAV (Fan powered VAV) boxes with hot water coils will be installed for each classroom. The total estimated area to be served by this system is 9,261 sq. ft. The science classrooms will have a duct distribution system extended from the existing sidewall diffusers for better air distribution.

Rooms to be served from this unit are designated 202, 203, 204, 206, 210, 214, 215 interior of 217, 218 and classroom 219. Both systems will have full DDC control and will be tied into the new Niagara system.

The Guidance office area will have a 7.5 ton cooling only RTU installed in the location of the guidance office and utilize the existing cold deck ductwork from the existing multi-zone unit work to serve 9 of the existing conference rooms and offices. The existing spline ceiling areas will be removed and replaced with lay-in ceilings to allow for the installation of single zone VVT boxes will be installed for each zone. The total estimated area to be served by this system is 2,280 sq. ft. This area will then be able to operate year round without the need to run the two larger systems feeding the science area.

Replacement of the Library system will involve the removal of the existing air handling unit from above the ceiling. A 17.5 ton gas fired heat/ cool RTU will be installed in the location of the existing cooling condenser on the roof and the ductwork will be run down to feed the supply air by connecting to the existing ductwork from the unit in the ceiling and also extended to serve room 201 and 242. The total estimated area to be served by this system is 2,280 sq. ft. This system will have full DDC control tied to the automation system provided in a different measure.

ECM 01-06: ADD AC TO BUILDING 5TH GRADE & SCIENCE WING UNITVENTS

Existing Conditions:

The two floors in the 5th grade wing and the classroom areas along the outside wall of the science area are presently conditioned only with hot water unit ventilators unless a window AC unit was added to help temper the space. These units are original to the building and can only provide heating and ventilation to the spaces.

Proposed Solutions:

Gardiner will provide a new VRV (Variable Refrigerant Volume) heat pump and cooling unit-ventilation system utilizing the existing hot water supply system for the classrooms in the 5th grade and science wing classrooms. Each room will have a new unit in place of the existing system which will come with new controls allowing individual room temperature control and remote monitoring and service capabilities.

The 5th floor wing classroom to be served from a VRV system are designated as 101, 102, 103, 104, 105, 106, 107, 108, 205, 301, 303, 304, 305, 306 and 307.

The Science classrooms to be served from a VRV system are designated 207, 208, 209, 211, 212, 213, 217 and 220.

The existing split Air handler portion of the split systems above the ceiling of rooms 213 and 216 will be abandoned



in place, and the condensing unit along with the refrigerant piping through the roof will be removed to eliminate the penetration for the new roof installation.

A split system cassette with remote condensing unit will be installed to provide air conditioning for office #302. Each room with a VRV cassette will have its own new thermostat control which will be integrated into the base Niagara network system.

ECM 01-08: ADDING A/C TO CAFETERIA

Existing Conditions:

The cafeteria is presently conditioned by 7 hot water heating only unit ventilators along the outside wall which are original to the building. These units can provide outside air ventilation through their outside air damper when operating correctly.

Proposed Solutions:

Gardiner will provide a completely new rooftop heating and AC system sized to accommodate the cafeteria at full capacity. Install a (4) packaged gas/ DX electric rooftop units on roof of cafeteria w/ concentric diffusers to distribute the air evenly in the space. The units will have the ability to heat, cool and properly ventilate the space. The existing unit vents along the north wall will be removed along with the shelving units, floor patched with VAT tile and walls pated to match existing. The new unit will utilize the existing ductwork within serving area. The existing 6000 cfm unit that serves the interior part of the cafeteria will be removed and duct work capped and sealed. Each new unit will come with new controls allowing individual room temperature control, remote monitoring and service capabilities.

ECM 01-09: REPAIRING/MODIFYING SERVING AREA

Existing Conditions:

The ventilation in the serving area is supported by original HW rooftop units.

Proposed Solutions:

Remove the existing roof mounted AHU that serves side wall diffusers in cafeteria, cap the HW coil and cap/seal the existing roof curb. In the cafeteria serving area Gardiner will remove existing roof mounted AHU that serves serving area and install a 100% packaged gas/electric rooftop unit to condition the serving area and transfer conditioned MUA for kitchen. The current kitchen exhaust requirement is 9660 cfm based on the existing plans. The intent with in installation of the new Cafeteria/Serving area air conditioning system is to support the exhaust requirement for the hoods thru the transfer of the required occupant ventilation air for the cafeteria and new 100% outside air unit for the serving area.

ECM 01-10: REPLACE KITCHEN VENTILATION

Existing Conditions:

The kitchen ventilation is not adequate for the hood operation and the serving area utilizes pure circulation air pulling air from within the space to distribute it into the various spaces.

Proposed Solutions:

For the Kitchen, the existing rooftop Transfer fan will be removed. Gardiner will install a packaged rooftop transfer unit (non- heated) to provide air for the kitchen area. The new unit will utilize the existing ductwork.

ECM 01-14: REPLACE AUDITORIUM BOILERS

Existing Conditions:

The boiler plant involved in the measure have had one of the two original boilers replaced with a partially condensing boiler with the remaining original low efficiency boiler operating as the backup. Since this conversion the replaced boiler has failed and is in need of replacement because of leaking issues.

Presently the whole plant is in question so it will be recommended to replace the entire plant.

Proposed Solutions:

Gardiner will gut the existing plant and provide a two new high efficiency boilers, pumps and specialties to replace the Bryan and RBI boilers. The piping arrangement to get the full benefit of a high efficiency plant operation. The new boilers will allow for full condensing capability eliminating the requirement to backflow supply water reducing the overall efficiency. The boilers will come with new controls allowing enhanced sequencing control, remote monitoring and improved servicing capabilities. The new plant will be operated to ensure equal operation of both boilers since they will be sized for full redundancy.

REPLACEMENT OF AUTOMATION SYTEM

Existing Conditions:

The old Barber Coleman system in the middle school would be considered an energy management system since it primary shuts equipment down and monitors temperatures without any real control of any of the connected equipment. The system currently utilizes time schedules and has most equipment in the building shutting down very effectively. Communications to the existing system is done through a very inadequate dial up system which does not allow remote access. The system is not utilized to it optimal because of the cryptic nature of the data. The present system is a proprietary system not allowing modification or addition to the system without the providing company support.

ECM 01-19: CONTROLS REPLACEMENT – EMS (ALL EQUIPMENT)

This measure is considered a start/stop and monitoring level control system. The overall thought behind the application of this control level is to; replace all functions being presently provided by the BC system with a new fully Bacnet compatible system, match the stop/start and monitoring level which is provided by the old BC system, add any of the additional equipment in the building which are stand alone now, and integrate with the existing Trane system in the 8th grade wing.

The biggest enhancement in the manner the equipment is now being controlled is that the pneumatic components which are being utilized to start/stop the equipment will be replaced with actual control relays and current sensing devices which will provide a true feedback of whether the equipment is truly running or not. Also, on request of the administration an addition discharge air sensor is being added to each unit so it can be used while viewing to verify if the unit is operating properly or not even though the pneumatic system is still actually controlling the unit.

To accomplish this, an actual controller will be provided at each piece of equipment with a communication bus at which the district can eventually convert the equipment over to full DDC at the rate they desire or as the pneumatic systems fail without having to add controllers and network connections. The existing pneumatic devices (PE's, EP's and pilot valves) which are presently providing for the unitary shutdown will be removed.

The full list of the equipment being controlled and monitored in this measure includes the following area by area breakout;



Boiler room 3 will have a controller which will integrate with the two new boilers and pick up stop/start, staging, pump stop/start and sequencing, and monitor hot water supply and return temperatures.

The chiller will have a controller which will provide stop/start of the chiller and monitor chilled water temperatures.

Room 123 – lab room will have an App Stat which will tie into automation for scheduling & monitoring

Room 124 – lab room will have an App Stat which will tie into automation for scheduling & monitoring

Band room unit will have a controller which will provide s/s, status, monitor DA temperature and zone temperature

Choir room unit will have a controller which will provide s/s, status, monitor DA temperature and zone temperature

Stage Units & back stage heating will tie into system from a controller in band equipment area will have s/s, status, and zone temperature

The two auditorium units will each have a controller which will provide s/s, status, monitor DA temperature and zone temperature.

The unit serving rooms' 112 – 116 unit will integrate into the automation system using the existing BAC controller

The unit serving rooms' 117 – 125 unit will integrate into the automation system using the existing BAC controller

The unit serving room 111 unit will integrate into the automation system using the existing BAC controller

The unit serving room 109 will have an App Stat which will tie into automation for scheduling & monitoring

Boiler room 2 will have a controller which will pick up stop/start, staging of the boilers, provide pump stop/start and sequencing, and will monitor hot water supply and return temperatures. The air compressor in the room will be monitored for operating status unless it is determined it can be completely eliminated once all of the new mechanical work is completed.

The two operating gymnasium units will each have a controller which will provide s/s, status, monitor DA temperature and zone temperature.

The AD office and team room units will have a controller which will provide s/s, status, monitor DA temperature and zone temperature.

The preschool area or (area 5005) of the CITE wing will have an App Stat installed on the unit which will tie into the system network. The second rooftop unit in the area will have a controller installed which will have stop/start control of the packaged AC rooftop unit and will provide monitoring of the 4 zones and relays to control the reheating devices.

The main office area unit will utilize the Bacnet card defined in the installation to tie into the network for control of that unit and two other office mini-split units will have App Stats installed for monitoring and control by the system.

Boiler room 1 will have a controller which will pick up stop/start, staging of the boilers, provide pump stop/start and sequencing, and will monitor hot water supply and return temperatures. The air compressor status will be monitored since pneumatics will remain in the building area.

BRECKSVILLE BROADVIEW HEIGHTS HIGH SCHOOL

Existing Conditions:

The Barber Coleman system in the building was installed new in 1998 when the building was built and very little has been done to upgrade the system from that time. Access to the system remotely is through a dial up system which has not been used for years. The school district must maintain a phone LAN line to access the system which fails at most attempts. Since the system is so cumbersome to operate it is rarely used as the maintenance tool which an automation system like this is meant to be.

Many of the components which are integral to this system are no longer readily available and most are proprietary to



Barber Coleman representatives. The VAV box controllers which the high school system has over 200 are not available anymore and each must be repaired by a specialty company before replacement.

ECM 02-03: CONTROLS REPLACEMENT - PRIMARY EQUIPMENT ONLY

This solution begins the replacement of the old BC system by installation of new KMC controllers on the primary equipment only. (as defined below) That pertains to the two main plants, hot water & chilled water, and the ten main air handling units in the building. This provides the ability to more readily modify programming of the equipment to gain the most savings potential and provide the best overall maintenance applications. These antiquated Barber Coleman controllers will be replaced with KMC controllers and put on a new open protocol network. To keep the cost to a minimum, Gardiner will be able to utilize most of the functioning existing transmitters and relays. The remaining equipment, the hundreds of VAV boxes and radiant coils in the building will be integrated to allowing them to be part of the new head end system which will allow a new graphics review of the system data. During the process of integrating the existing system the Gardiner AI department will utilize their tools to generate a deficiencies list of controller and/or components which are not functioning properly. This list of deficiencies will be remedied out of the controls contingency fund once approved by the district. The graphics will be built based on the floor plan of the building and each piece of equipment will be accessible by just clicking on the zone served by the unit or the specific room that needs investigated. The initial view of the floor plan can allow the operator to take a quick scan of the building to look for temperatures that may be unacceptable. The equipment defined as Primary is included in the following list all other equipment on the existing BC system will be tied into through integration.

Packed equipment not already on the system such as the office area (rooms 133 -137) and the kitchen RTU will be added to the system by utilizing a Bacnet communications card, if available, or by utilizing App Stats which allow the unit to be controlled and monitored through the primary network system.

Any additional equipment or points requested to be controlled in the building but are not presently on the automation system were not known to be figured into the primary equipment list. These or any other additional points requested by the district will be added to the network control system utilizing the contingency fund.

Primary Equipment List

Main Heating Plant	Main Chiller Plant
Unit #A201	Unit # C201
Unit #A202	Unit # C202
Unit #A203	Unit # D001
Unit #B01	Unit # D201
Unit #B02	Unit # F101



BRECKSVILLE BROADVIEW HEIGHTS BOARD OF EDUCATION

Existing Conditions:

The HVAC system at the Board Office has had several modifications over the years to get the building to operate more comfortably. The rooftop multi-zone system does have some inherent problems since it does not typically have heat and cooling available at all times. To be more energy efficient it will use the mixed air as the source for the opposite season duct supply. The modifications to the return air system should have remedied circulation within the space but with these type of changes there are usually other issues which come up. The original return air system was left in place which is now being affected by the wall radiant system which was installed to supplement the air system.

A radiant system is meant to induce draft across the baseboard unit which would be hard for it to do when there is a return duct underneath it pulling air the other direction. This renders the baseboard somewhat useless and at the same time provides a false sense of what the true return air temperature back to the unit truly is.

The moving of walls to accommodate office changes did not affect the areas applied to the zones. The rooms all stayed within the zone thermostat and air coverage for that space. The controls to the unit are a proprietary Automated Logic DDC control system which was installed when the new unit was replaced on the roof.

ECM 03-02: HVAC SYSTEM MODIFICATION - REPAIR

Gardiner will provide ductwork modifications to ensure proper air movement in each room. The return air dampers in the floor of the offices will be covered with sheet metal to block air moving in that direction, allow the new return air system to work as planned and also allow the baseboard system to produce natural draft as they are designed to do. After these modifications are completed, the entire system will be rebalanced to ensure proper and appropriate flows are provided to each of the zones and the rooms. In measure 03-05 we will be replacing the control system which operates the rooftop unit. As part of that measure, we will now be able to provide enhanced control sequences such as zone damper monitoring and building static pressure control.

ECM 03-05: REPLACE THE AUTOMATED LOGIC SYSTEM WITH A NIAGARA OPEN SYSTEM

Gardiner will replace the Automated Logic controllers and replace the entire network with new KMC controllers. Gardiner will be able to utilize most of the existing transmitters and relays. The new system will be completely Web based and will allow for remote access. All controllers will be on an open protocol network so the district will no longer be tied into a proprietary system. The additional equipment in the building such as the radiant HW system will also be added to the system for improved monitoring and control.



Intelligent Services Agreement

Contract Presented to: Craig Yaniglos

Brecksville Broadview Heights City Schools, 6638 Mill Road, Brecksville, OH 44141

PROJECT AND/OR LOCATION:

Brecksville Broadview Hts. Elementary School and Field House (New Building not yet built)	3500 Oakes Road
Brecksville Broadview Hts. Middle School	6376 Mill Road
Brecksville Broadview Hts. High School	6380 Mill Road

Presented By: Matt Field, Account Manager
Agreement No.: 84749 I To be Determined

Intelligent Services Support:

The Gardiner Intelligent Services agreement is meant to provide support to help ensure you capture the full benefits of your HVAC system investment. The automation system is a critical component in maximizing system comfort, efficiency, and overall operation. It is also crucial to ensure the system is properly adjusted from design to the actual operating environment

Gardiner has developed the Intelligent Services program in order to help:

Improve Space Comfort

Utilize Gardiner's Space Comfort Scorecard to prioritize and address areas with comfort issues. Space comfort is graded based on a spaces ability to maintain set point over time, areas of concern show up as red or yellow.

Reduce Energy Spend

Gardiner will monitor facility energy usage along with system operation in order to identify areas of improvement, making adjustments and recommendations as necessary. Gardiner will also use national and local databases to compare your facility's performance to other similar facilities.

Reduce Operational Spend

Gardiner will use data driven service to reduce truck rolls, maximize technician time effectiveness, and prolong equipment life.

Reduce Down-Time

Gardiner Intelligent Services monitoring and diagnostics enable Gardiner to detect potential issues and avoid unnecessary down-time. It also allows us to remotely diagnose and resolve system issues, saving time and potential service truck rolls. Gardiner Intelligent Services can ensure the operating software is up to date as well as perform system back-ups so in case of a catastrophic event, the system can be restored and back in operating condition as quickly as possible.

The building automation system is vital to maintaining occupant comfort, productivity, and energy efficiency. Gardiner looks forward to the opportunity to support the objectives of your organization.

SERVICE AGREEMENT PRICING AND ACCEPTANCE:

PROJECT AND/OR LOCATION:

Brecksville Broadview Hts. Elementary School and Field House (New Building not yet built)	3500 Oakes Road
Brecksville Broadview Hts. Middle School	6376 Mill Road
Brecksville Broadview Hts. High School	6380 Mill Road

GARDINER COMPANY, herein referred to as the Service Company, agrees to furnish services in accordance with the "General Terms and Conditions" and attached "Schedules". This AGREEMENT shall become valid only upon acceptance by CUSTOMER and approved by the Service Company.

Our agreement price per year is noted below, payable in **quarterly** amounts. Any repairs provided outside the scope of the agreement will include a \$55.00 daily truck charge. Upon execution of this Agreement, the customer shall be



responsible for determining proper Ohio sales tax. If you are tax exempt, please include your tax exemption certificate. This price is **firm for three years**.

Year One:	Services at the Middle and High School	\$24,000.00
Year Two:	Services at the Elementary, Middle and High School	\$29,000.00
Year Three:	Services at the Elementary, Middle and High School	\$29,000.00

This agreement date is HS and MS start date in year one is August 2021. Elementary with a start date of August 2022. HS, MS and Elementary renewal date is July 2024 and shall remain in effect from year to year unless terminated by either party at the end of the anniversary date by giving at least thirty (30) days written notice.

Note: This price includes provisions for safety under standard industry & Gardiner safety guidelines. Any special additional safety training, equipment, or processes required by your organization could affect the project scope and/or hours and may result in a price adjustment. If you have any specific safety practices or requirements, please alert your sales representative immediately so we ensure that our proposal fully meets your requirements

GENERAL TERMS AND CONDITIONS:

I. PRICE ADJUSTMENT

This agreement price is firm for Three Years. Effective Dates: To Be Determined.

II. PAYMENT

Terms of this agreement are net payment upon receipt of invoice. Gardiner Service Company DBA Gardiner, reserves the right to discontinue its service anytime payments have not been made as agreed. Taxes, if applicable, will be included in billing. CFC Tax has been passed for most refrigerants per the 1990 Budget Reconciliation Bill (H.R. 3299). The increase in refrigerant costs above the normal escalation rate in your contract and CFC Tax will be billed additional at time of use.

III. WARRANTY: Gardiner guarantees service work and all materials of Gardiner's manufacture against defects in workmanship for 90 days from date of completion of the work and will repair or replace such products or components as Gardiner finds defective. This warranty does not include cost of handling, shipping, or transportation involved in supplying replacements for defective components. This warranty does not include the replacement of refrigerant lost from the system. On machinery and materials furnished by Gardiner, but manufactured by others, the only warranty provided is that of the manufacturer. **THE WARRANTY AND LIABILITY SET FORTH IN THE PRECEDING PARAGRAPHS ARE IN LIEU OF ALL OTHER WARRANTIES AND LIABILITIES, WHETHER IN CONTRACT OR IN NEGLIGENCE, EXPRESS OR IMPLIED, IN LAW OR IN FACT, INCLUDING IMPLIED WARRANTIES OF MERCHANTABILITY AND FITNESS FOR A PARTICULAR USE OR FITNESS FOR A PARTICULAR PURPOSE. IN NO EVENT SHALL GSC BE LIABLE FOR ANY INCIDENTAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES.**

IV. LIMITATION OF LIABILITY: All claims, causes of action or legal proceedings against Gardiner arising from Gardiner's performance under this contract must be commenced by Customer within the express warranty period specified under Paragraph III hereof. Failure to commence any such claim, cause of action or legal proceeding within such claim, cause of action or legal proceeding within such period shall constitute a voluntary and knowing waiver thereof by Customer. **IN NO EVENT SHALL GARDINER'S LIABILITY FOR DIRECT OR COMPENSATORY DAMAGES EXCEED THE PAYMENTS RECEIVED BY GARDINER FROM CUSTOMER UNDER THIS CONTRACT, NOR SHALL GARDINER BE LIABLE FOR ANY SPECIAL INCIDENTAL, OR CONSEQUENTIAL, OR PUNITIVE DAMAGES. THESE LIMITATIONS ON DAMAGES SHALL APPLY UNDER ALL THEORIES OF LIABILITY OR CAUSES OF ACTION INCLUDING BUT NOT LIMITED TO CONTRACT, WARRANTY, NEGLIGENCE, STRICT LIABILITY, OR ANY OTHER LEGAL THEORY. GARDINER DISCLAIMS ANY LIABILITY FOR DAMAGES OF ANY KIND ARISING FROM MOLD, FUNGUS, BACTERIA, MICROBIAL GROWTH, OR ANY OTHER CONTAMINATES.**

V. INDEMNITY: Gardiner and customer shall mutually, in proportion to their respective degree of fault, indemnify, defend and hold each other harmless from any and all claims, actions, costs, expenses, damages and liabilities, including reasonable attorneys' fees, resulting from death or bodily injury or damage to real or tangible personal property, to the extent caused by the negligence or misconduct of the indemnifying party, and /or its respective



employees or agents. With respect to any claims based on facts or conditions that occurred prior to expiration or termination of this agreement, the duty to indemnify will continue in full force and effect notwithstanding expiration or early termination.

- VI. NO-HIRE; NO-SOLICITATION:** Customer hereby covenants and agrees that, without the prior written consent of the Company, he/it will not, directly or indirectly (including, without limitation, through any affiliate or related party), (for a period of two (2) years after the date hereof solicit the employment of, offer employment to or hire, any employee of the Company, or any individual whose employment with the Company ended less than one hundred eighty (180) days prior to such solicitation or offer. Customer acknowledges that in the event of a violation of the covenants contained in this Section, the Company's damages will be difficult to ascertain and the Company's remedies at law will be inadequate. Accordingly, the Customer agrees that, in addition to such remedies as the Company may have at law, the Company shall be entitled to specific performance of such covenants and to an injunction to prevent any continuing violation thereof.
- VII. DISPUTES AND CHOICE OF LAWS:** This contract shall be deemed to have been entered into and shall be governed by the laws of the State of Ohio. All claims, disputes, and controversies arising out of or relating to this contract, shall be submitted to mediation, pursuant to the Commercial Dispute Resolution Procedures ("CDRP") of the American Arbitration Association. The mediation shall take place in Cleveland, Ohio within thirty (30) days of the date the dispute arises. If mediation is unsuccessful, the dispute shall proceed to binding arbitration, pursuant to the CDRP, in Cleveland, Ohio, no later than sixty (60) days after the mediation is concluded. Any judgment upon the arbitration award may be confirmed in any court having jurisdiction thereof. The parties agree that any party to the arbitration shall be entitled to discovery from the other party as provided by the Ohio Rules of Civil Procedure. Any such discovery shall be completed within four (4) months from the date the Demand for Arbitration is filed with the American Arbitration Association. Unless otherwise agreed, the arbitration shall be completed no later than six (6) months after the arbitration commenced.
- VIII. CUSTOMER OBLIGATIONS:** The Customer shall:
- Operate the equipment in accordance with manufacturer's recommended instructions.
 - Promptly notify Gardiner of any unusual operating conditions.
 - Provide access to the equipment including removal, replacement, or refinishing of the building structure if necessary.
 - Pay for any services and materials not specifically included in this agreement. Additional charges shall be made upon Customer's authorization at prevailing rates.
 - Disposal of old oil and refrigerant shall be the Customer's responsibility if it becomes classified as hazardous.
- IX. SERVICE COMPANY OBLIGATIONS:** It shall be the responsibility of Gardiner to inform the Customer of any adverse conditions beyond the scope of the preventive maintenance agreement and make recommendations to correct them.
- X. SUPPLEMENTAL CONDITIONS:** 1) **Brecksville-Broadview Heights City Schools** shall be considered a priority customer; Gardiner will respond to a service call within four (4) hours. 2) Any services or material supplied outside the context of this contract will be billed at best prevailing rate.
- XI. ENTIRE AGREEMENT:** These terms and conditions constitute the entire agreement between Gardiner and Customer. If there is a conflict with other terms and conditions, these terms and conditions shall control. No course of dealing or performance, or prior, concurrent or subsequent understanding, agreements, or representations become part of this contract unless expressly agreed to in writing by an authorized representative of Gardiner.

SCOPE OF COVERAGE

INTELLIGENT SERVICES

PROJECTS & LOCATIONS:

Brecksville Broadview Hts. Elementary School and Field House
(New Building not yet built)
Brecksville Broadview Hts. Middle School

3500 Oakes Road
6376 Mill Road

OPERATIONAL SUPPORT		INTELLIGENT SERVICES
•	Help Desk Support	☒
•	Operational Review	
	• On-Site Operational Reviews – Two Per Year	☒
	• Remote Operational Reviews – Two Per Year	☒
•	Building Analytics - Two Per Year	
	• Dynamic Commissioning & Utility Bill Analysis	☒

SCHEDULES

INTELLIGENT SERVICES

Essential Support

As part of all Gardiner Intelligent Services offerings, a data pump will be installed to gather and trend building data to analyze systems performance and to identify anomalies. All Intelligent Services agreements will require an external IP connection.

Help Desk

The Help Desk is staffed during normal business hours (8:00am – 5:00pm) to provide qualified technical assistance with questions related to the operation of the temperature control and building automation system. They can help assist with such things as:

- Set point changes
- Changing time schedules
- Setup of trends and calculations
- Changing user authorization settings
- Understanding the buildings operation
- Informal training

Operational Review Inspections

The operator interface is key to the performance of the building temperature control and automation system and ultimately the energy and the productivity of the facility. The Operational Reviews are designed to allow the Intelligent Services technician to take action the system deficiencies discovered through the trending of data.

On-Site Operational Reviews – Two per Year

- Investigate documented issues from the client
- Review and take corrective action on issues discovered through the trending of data
 - Programming modifications
 - Sensor calibration/ verification
 - Set-point modifications

- Evaluate faulted control components
- Training on the building automation system
- Alarm routing and setup
- Software maintenance and upgrades
- Run system performance reports to identify deficient items on the building automation system.
- Utilize pre-set system operating parameters to generate pass/fail conditions for all automated system components
- Identify items in alarm, overridden, or scheduling exceptions.

Software Maintenance and Upgrades

Control system software is periodically upgraded and software patches are generated to improve system functionality. To assure that your system remains current with the latest major and minor revisions, the labor and material costs to install current patches compatible with the existing system software are included. In addition, a backup of the database will be performed to allow for ease in restoration in the event of catastrophic system failure. This will be performed during the on-site operational reviews.

Building Analytics – Two per Year

Dynamic Commissioning™ & Utility Bill Analysis

Gardiner will install a data pump to gather and trend building data to analyze systems performance and to identify anomalies. Gardiner Energy Engineers will analyze and interpret data into recommended action items to improve your facility operation, comfort, and energy efficiency.

The Gardiner Energy Engineer will also review utility bills using EnergyPrint™ and/or Metrix™ software. The Energy Engineer will monitor and track building performance, adjusting for weather and other applicable variables. If applicable, the facility's Energy Star rating will also be tracked.

Results and recommendations will be presented in summary reports including:

- ☐ Space Comfort Scorecards (if applicable)
- ☐ Detailed analysis of systems
- ☐ Energy Savings & Tracking Report
- ☐ Recommendations for operational, comfort, and energy improvements